

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE R. NARAYANAN

THURSDAY, THE 21ST DAY OF DECEMBER, 2023 / 30TH AGRAHAYANA, 1945

W.P.(C) No. 1234 of 2023

PETITIONER:

LAKEVIEW RESIDENTS' ACTION COMMITTEE,
Represented by its Convenor,
Vembanad Lake Area, Alappuzha District.

RESPONDENTS:

1. State of Kerala,
Represented by the Principal Secretary,
Local Self Government Department, Government Secretariat,
Thiruvananthapuram.
2. The Secretary,
Department of Environment, Government Secretariat,
Thiruvananthapuram.
3. The Secretary,
Vembanad Municipality.
4. Bluewater Infrastructure Private Limited,
Represented by its Managing Director,
Registered Office at Ernakulam.

This writ petition (civil) having come up for admission and final hearing on 21.12.2023, the Court on the same day delivered the following:

JUDGMENT

1.

The petitioner is a residents' committee claiming to represent persons residing in the vicinity of Vembanad Lake. The grievance raised in this writ petition concerns the building permit issued by the third respondent Municipality in favour of the fourth respondent for construction of a commercial complex described as the "Vembanad Waterfront Commercial Centre".

2. The petitioner contends that the project is situated approximately 200 metres from the boundary of Vembanad Lake and has a proposed built-up area of approximately 4,500 square metres. According to the petitioner, the Municipality issued the building permit without insisting upon prior environmental clearance and without properly verifying the setback from the lake.
3. The fourth respondent disputes the allegations. It is contended that the building permit was issued after scrutiny of the application and that the project was assessed under the Government directions then relied upon by the Municipality. It is further submitted that an application for environmental clearance had been submitted before the permit was issued and that the receipt of such application was available in the permit file.

Submissions

4. Learned counsel for the petitioner submits that the project falls within the class of large commercial projects situated in an ecologically sensitive area. The petitioner relies upon Rule 12 of the Kerala Building Rules, 2022, which, in the synthetic record placed before this Court, requires prior environmental clearance for a large commercial project within the specified distance from a water body.
5. Learned counsel further submits that the site plan produced before the Municipality showed a setback of approximately 8 metres from the lake boundary. The minimum setback prescribed for the relevant category of project was 10 metres. It is argued that the Municipality had no jurisdiction to issue the final permit while these mandatory requirements remained unsatisfied.
6. Learned counsel for the Municipality submits that the project was subjected to preliminary and technical scrutiny. It is argued that the environmental-clearance application was pending before the competent authority and that the Municipality was entitled to proceed with the building-permit process while awaiting the environmental decision.
7. Learned counsel for the fourth respondent submits that the proposed project was below the threshold referred to in an earlier Government Order and that the applicant had acted bona fide on the basis of the said order. The fourth respondent also submits that no construction activity had materially progressed and that the matter could be remitted for fresh consideration instead of cancelling the permit.

Points for consideration

8. The following questions arise for consideration:
 - (i) Whether the project is a large commercial project within the meaning of the applicable building-permit provisions;
 - (ii) Whether the location of the project within approximately 200 metres of Vembanad Lake attracts the environmental and setback safeguards applicable to ecologically sensitive zones;
 - (iii) Whether an application receipt or pending application for environmental clearance is equivalent to prior environmental clearance; and
 - (iv) Whether the building permit can be sustained when the mandatory environmental-clearance and setback requirements have not been verified.

Discussion

9. The documents placed before the Court show that the proposed built-up area of the project is 4,500 square metres. The project comprises commercial office, retail and hospitality components contained in one development proposal. The project therefore cannot be treated as an ordinary small building application merely because the components are described under different functional headings.
10. The site plan and the inspection note indicate that the nearest point of the proposed structure is approximately 200 metres from the boundary of Vembanad Lake. The project is consequently located within the area requiring enhanced scrutiny under the applicable building rules and Government directions.
11. The requirement of prior environmental clearance is materially different from the requirement to submit an application for such clearance. A receipt, acknowledgement or proposal number establishes only that a submission has been made to the environmental authority. It does not establish that the competent authority has examined and approved the project, imposed conditions, or authorised the proposed activity.
12. Where the applicable rule requires prior environmental clearance before issue of a final building permit, the local authority cannot replace that requirement with an undertaking by the applicant or with a record showing that the application is pending. The local authority may undertake preliminary technical scrutiny, but the final permit must await verification of the mandatory prior approval.
13. The same principle applies to the setback requirement. A setback is not a matter that can be left to later correction when the approved building footprint already encroaches upon the minimum distance prescribed for the site. The permit-issuing authority must verify the measurement using a reliable site plan, survey or competent technical record.
14. The Municipality's file contains a site plan showing a proposed setback of approximately 8 metres. The Municipality has not produced a reasoned order explaining how a final permit could be issued despite the minimum 10-metre setback stated in the applicable provision. Nor does the file contain a verified final environmental-clearance order covering the project area and proposed activities.
15. The contention that the earlier Government Order permitted a lower setback or a different threshold cannot assist the fourth respondent in the present case. The later Government Order placed before the Court expressly supersedes the earlier instruction to the extent of inconsistency. An officer processing a pending application is required to verify the applicable instruction in force before issuing a final permit.
16. The Court is conscious that building-permit decisions involve technical and administrative examination. The Court is not substituting its assessment for that of the competent authority. The defect in the present case, however, is not merely a disagreement about technical design. It is the absence of verification of approvals and measurements which the applicable framework treats as prerequisites to final permit issuance.

Findings

17. On the material available in the record, this Court finds as follows:

- (i) the project is a large commercial project;
- (ii) the project is situated within the ecologically sensitive distance from Vembanad Lake;
- (iii) the environmental-clearance application receipt produced by the respondents is not prior environmental clearance;
- (iv) the proposed 8-metre setback does not satisfy the 10-metre minimum recorded in the applicable provision; and
- (v) the Municipality did not record adequate reasons for issuing the final building permit despite the unresolved deficiencies.

18. A final building permit issued without verification of a mandatory prior environmental clearance, where such clearance is required by the applicable rule, cannot be sustained. The permit is liable to be quashed so that the competent authority may reconsider the application in accordance with law.

Directions

19. The building permit issued by the third respondent Municipality to the fourth respondent for the Vembanad Waterfront Commercial Centre is hereby **quashed**.

20. The third respondent shall reconsider the building-permit application after the fourth respondent produces, and the competent authority verifies—

- (i) final prior environmental clearance covering the project, site, built-up area and proposed activities;
- (ii) a revised site plan showing the verified boundary of Vembanad Lake and a minimum setback of 10 metres or any greater distance required by a competent authority;
- (iii) the applicable local-body, fire and other departmental clearances; and
- (iv) a consolidated statement identifying all blocks, phases and components of the development.

21. The third respondent shall pass a reasoned order after giving the petitioner and the fourth respondent an opportunity to submit their respective materials. The decision shall be taken within eight weeks from the date on which a complete application and the documents specified above are produced.

22. The fourth respondent shall not commence or continue construction pursuant to the quashed permit. This direction shall not prevent the fourth respondent from carrying out lawful activities that do not amount to construction under a valid permit, subject to the orders of the competent authorities.

23. The third respondent shall place a copy of the reconsideration order and the verification note on the permit file. The officer responsible for processing the original application shall

submit an explanation to the Secretary of the Municipality regarding the absence of verification of the mandatory approvals and setback measurement. The Secretary shall decide whether any further administrative action is required in accordance with the applicable service and disciplinary procedure.

24. The writ petition is allowed in the above terms. There will be no order as to costs.

Sd/-

R. NARAYANAN, JUDGE

Appendix: Documents referred to in the judgment

1. Building-permit application submitted by the fourth respondent.
2. Site plan showing the proposed building footprint and lake boundary.
3. Building permit issued by the third respondent Municipality.
4. Environmental-clearance application receipt.
5. Inspection note prepared by the Municipality.
6. G.O. No. 22/2021/LSGD.
7. G.O.(P) No. 45/2024/LSGD.
8. Kerala Building Rules, 2022.

Citation anchors for the prototype

- W.P.(C) No. 1234 of 2023, paras 1-7 — facts and submissions.
- W.P.(C) No. 1234 of 2023, paras 8-16 — legal issues and reasoning.
- W.P.(C) No. 1234 of 2023, paras 17-18 — findings.
- W.P.(C) No. 1234 of 2023, paras 19-24 — directions and relief.